

Court No. - 32

Case :- WRIT - C No. - 38926 of 2019

Petitioner :- Chand Miyan @ Chand

Respondent :- State Of U.P. And 02 Others

Counsel for Petitioner :- Shahnawaz Akhtar,
Mukesh Kumar Singh

Counsel for Respondent :- C.S.C.

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari to quash the Recovery Certificate dated 11.09.2019 issued by the respondent no. 2.

(ii) Issue a writ, order or direction in the nature of mandamus directing to the respondents not to recover the money from the petitioner, according to the Recovery Certificate."

Heard the learned counsel for the petitioner, Sri Mukesh Kumar Singh, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 12.12.2019 at

11.00 A.M. before the Respondent No.3, Executive Engineer along with his objection already filed by him and adduce his evidence, if any, in support of his contention. The Respondent No.3, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of six weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed, the impugned recovery citation shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 28.11.2019

Arun